

BEFORE
PENNSYLVANIA PUBLIC UTILITY COMMISSION

In Re: Withdrawal of Preliminary Objection to the Application of Aqua Pennsylvania, Inc. for Approval of the alteration of the crossing (DOT# 541 317 K) where Parkmount Road crosses under a trail bridge in Middletown Township in Delaware County, Pennsylvania.

Application Docket No.: A-2025-3053578

To the Pennsylvania Public Utility Commission:

1. The name and address of the Interested Party is the Southeastern Pennsylvania Transportation Authority ("SEPTA"), 1234 Market Street, 10th Floor, Philadelphia, PA 19107.
2. The name and address of the Interested Parties attorney is Pedro Ferrer, 1234 Market Street, 10th Floor, Philadelphia, PA 19107.
3. SEPTA is an agency and instrumentality of the Commonwealth of Pennsylvania.
4. SEPTA hereby withdraws its preliminary objection filed on May 2, 2025. Applicant has since agreed to coordinate their Project with SEPTA in accordance with applicable state and federal laws, rules and regulations.
5. To the best of the applicant's knowledge, the name and addresses of the persons, parties and entities potentially concerned in or affected by the proposed construction are:

PECO 450 S Henderson Road Suite B King of Prussia, PA 19406 Attn: Nikkia Simpkins	Verizon Pennsylvania, LLC 7000 Weston Parkway Cary, NC 27513 Attn: Victor Wood
SEPTA Facilities Engineering Department 1234 Market Street Philadelphia, PA 19107 Attn: Dave Montvydas	PAPUC Railroad Crossing Applications Penn DOT Right of Way and Utilities Division Penn Dot Bureau of Design P.O. Box 3362 Attn: Mark J Chappell P.E. Chief
PennDOT District 6-0 7000 Geerdes Boulevard King of Prussia, PA 19406-1525 Attn: Mary Ann Lang	Karen Cummings Assistant Counsel in Charge Department of Transportation Office of the Chief Counsel 9 th Floor P.O. Box 8212 Harrisburg, PA 17105-8212

Chester Water Authority 437 W Front Street P.O. Box 467 Chester, PA 19013 Attn: Jeff Derusso	Energy Transfer 1300 Main St Houston, TX 77002 Attn: Saul Shaw
Comcast 1250 Haddonfield-Berlin Rd Cherry Hill, NJ 08034 Attn: Wyatt Parrish	Middletown Township 27 N. Pennell Road P.O. 157 Lima, PA 19037 Attn: John McMullan
Delaware County 201 West Front Street Media, PA 19063 Attn: Monica Taylor	HRG Inc. 2710 Concord Rd Suit 3 Aston, PA. 19014 Attn: Walter Fazler
Lumen 1025 Eldorado Blvd Broomfield, CO. 80021 Attn: Lumen Operator Personnel	
Aqua Pennsylvania, Inc. 762 W. Lancaster Avenue Bryn Mawr, PA 19010 Attn: Scott Steffy	

Wherefore, SEPTA hereby withdraws its preliminary objection to this highway railroad crossing application and asserts that it has no further objections thereto.

RESPECTFULLY SUBMITTED:

SEPTA

Pedro Ferrer

Pedro M. Ferrer

Date: July 3, 2025

VERIFICATION

I, Pedro Ferrer, Corporate Counsel for SEPTA, hereby state that the facts above set forth are true and correct (or are true and correct to the best of my knowledge, information and belief) and that I expect to be able to prove the same at a hearing held in this matter. I understand that the statements herein are made subject to the penalties of 18 Pa. C.S. § 4904 (relating to unsworn falsification to authorities).

Date: 07/03/2025

Pedro Ferrer

Pedro M. Ferrer

CERTIFICATE OF SERVICE

I, Pedro Ferrer, hereby certify that I have this day served a true copy upon the participants, listed below, in accordance with the requirements of 52 PA Code Section 1.54 regarding the Application of Aqua Pennsylvania, Inc. for an upgrading to an existing water main installation at the crossing where Parkmount Road crosses underneath a bridge at crossing DOT# 541 317 K in Middletown Township in Delaware County, Pennsylvania.

Via Electronic Mail

PECO 450 S Henderson Road Suite B King of Prussia, PA 19406 Attn: Nikkia Simpkins	Verizon Pennsylvania, LLC 7000 Weston Parkway Cary, NC 27513 Attn: Victor Wood		
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Dated: 07/03/2025

Pedro M. Ferrer